roles but not necessarily subordinate to Steinbrinck. When Steinbrinck resigned in December, 1939, defendant Weiss, who is a nephew of Flick, was called to the Berlin office as Flick's assistant but with permission to devote about one-fourth of his time to his own company, Siegener Maschinenbau A.G. (Siemag), in the Siegerland with about 2000 employees. Thereafter Weiss, Burkart and Kaletsch, each in his own field, acted as assistants to Flick in the Berlin office. Weiss supervised the hard-coal mining companies and finishing plants; Burkart the soft-coal mining companies and steel plants, while Kaletsch acted as financial expert. Defendant Terberger was not in the Berlin office but was a part of a local administration as a member of the Vorstand of Eisenwerkegesellschaft Maximilianshuette, A.G., commonly called Maxhuette, an important subsidiary operating plants in Bavaria and through stock ownership controlling other plants in Thuringia and south Germany.

The Record comprises 10,343 pages. Not included therein are those portions of documents which were admitted without reading. The Court sat five days a week for six full months exclusive of recesses. Objection to evidence was rare until the prosecution was engaged in rebuttal. It is not too much to say that practically all the substantial evidence was received without objection.

Few of the legal questions in this case were suggested, much less argued and briefed, until the evidence had all been received. Arguments occupied the whole of the last week of November. Only since then has the Tribunal been able to obtain a comprehensive view of the evidence in the light of the legal principles sought to be applied by counsel. In reaching its conclusions, therefore, the Tribunal has been